RESIDENTIAL SELLER'S PROPERTY
DISCLOSURE STATEMENT (SPDS) *(To be completed by Seller)*

Document updated: **October 2017**

ARIZONA association of REALTORS®
REAL SOLUTIONS. REALTOR® SUCCESS.

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REALTOR® EQUAL HOUSING OPPORTUNITY

MESSAGE TO THE SELLER:

Sellers are obligated by law to disclose all known material (important) facts about the Property to the Buyer. The SPDS is designed to assist you in making these disclosures. If you know something important about the Property that is not addressed on the SPDS, add that information to the form. Prospective Buyers may rely on the information you provide.

INSTRUCTIONS: (1) Complete this form yourself. (2) Answer all questions truthfully and as fully as possible. (3) Attach all available supporting documentation. (4) Use explanation lines as necessary. (5) If you do not have the personal knowledge to answer a question, use the explanation lines to explain. *By signing on page 7, you acknowledge that the failure to disclose known material information about the Property may result in liability.*

MESSAGE TO THE BUYER:

Although Sellers are obligated to disclose all known material (important) facts about the Property, there are likely facts about the Property that the Sellers do not know. Therefore, it is important that you take an active role in obtaining information about the Property.

INSTRUCTIONS: (1) Review this form and any attachments carefully. (2) Verify all important information. (3) Ask about any incomplete or inadequate responses. (4) Inquire about any concerns not addressed on the SPDS. (5) Review all other applicable documents, such as CC&R's, association bylaws, surveys, rules, and the title report or commitment. (6) Obtain professional inspections of the Property. (7) Investigate the surrounding area.

THE FOLLOWING ARE REPRESENTATIONS OF THE SELLER(S) AND ARE NOT VERIFIED BY THE BROKER(S) OR AGENT(S).

PROPERTY AND OWNERSHIP

1. As used herein, "Property" shall mean the real property and all fixtures and improvements thereon and appurtenances incidental thereto,
2. plus fixtures and personal property described in the Contract.
3. **PROPERTY ADDRESS:** 2521 S Sabrina (STREET ADDRESS) Mesa (CITY) AZ (STATE) 85209 (ZIP)
4. Does the property include any leased land? ☐ Yes ☒ No
5. Explain: _____
6. Is the Property located in an unincorporated area of the county? ☐ Yes ☒ No If yes, and five or fewer parcels of land other than subdivided land
7. are being transferred, the Seller must furnish the Buyer with a written Affidavit of Disclosure in the form required by law.
8. **LEGAL OWNER(S) OF PROPERTY:** _____ Date Purchased: _____
9. The Property is currently: ☒ Owner-occupied ☐ Leased ☐ Estate ☐ Foreclosure ☐ Vacant If vacant, how long? _____
10. If a rental property, how long? _____ Expiration date of current lease: _____ (Attach a copy of the lease if available.)
11. If any refundable deposits or prepaid rents are being held, by whom and how much? Explain: _____
12. _____
13. Is the legal owner(s) of the Property a foreign person pursuant to the Foreign Investment in Real Property Tax Act (FIRPTA)?
14. ☐ Yes ☒ No If yes, consult a tax advisor; mandatory withholding may apply.
15. Is the Property located in a community defined by the fair housing laws as housing for older persons? ☐ Yes ☐ No
16. Explain: _____
17. Approximate year built: 2016 . If Property was built prior to 1978, Seller must furnish the Buyer with a lead-based paint disclosure form.

18. **NOTICE TO BUYER: If the Property is in a subdivision, a subdivision public report, which contains a variety of**
19. **information about the subdivision at the time the subdivision was approved, may be available by contacting the Arizona**
20. **Department of Real Estate or the homebuilder. The public report information may be outdated. www.azre.gov.**

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YES	NO	
☐	☒	Have you entered into any agreement to transfer your interest in the Property in any way, including rental renewals or options to purchase? Explain:
☒	☐	Are you aware if there are any association(s) governing the Property? MULBERRY HOA If yes, provide contact(s) information: Name: _____ Phone #: _____ Name: _____ Phone #: _____ If yes, are there any fees? How much? $ 131 How often? MONTHLY How much? $ _____ How often? _____
☒	☐	Are you aware of any association fees payable upon transfer of the Property? Explain: TRANSFER FEE OF $400
☐	☒	Are you aware of any proposed or existing association assessment(s)? Explain:
☐	☒	Are you aware of any pending or anticipated disputes or litigation regarding the Property or the association(s)? Explain:
☐	☒	Are you aware of any of the following recorded against the Property? (Check all that apply): ☐ Judgment liens ☐ Tax liens ☐ Other non-consensual liens Explain:
☐	☒	Are you aware of any assessments affecting this Property? (Check all that apply): ☐ Paving ☐ Sewer ☐ Water ☐ Electric ☐ Other Explain:
☐	☒	Are you aware of any title issues affecting this Property? (Check all that apply): ☐ Recorded easements ☐ Use restrictions ☐ Lot line disputes ☐ Encroachments ☐ Unrecorded easements ☐ Use permits ☐ Other _____ Explain:
☐	☒	Are you aware if the Property is located within the boundaries of a Community Facilities District (CFD)? If yes, provide the name of the CFD:
☐	☒	Are you aware of any public or private use paths or roadways on or across the Property? Explain:
☐	☒	Are you aware of any problems with legal or physical access to the Property? Explain: The road/street access to the Property is maintained by the ☐ County ☒ City ☐ Homeowners' Association ☐ Privately
☐	☒	If privately maintained, is there a recorded road maintenance agreement? Explain:
☐	☒	Are you aware of any violation(s) of any of the following? (Check all that apply): ☐ Zoning ☐ Building Codes ☐ Utility Service ☐ Sanitary health regulations ☐ Covenants, Conditions, Restrictions (CC&R's) ☐ Other _____ (Attach a copy of notice(s) of violation if available.) Explain:
☐	☒	Are you aware of any homeowner's insurance claims having been filed against the Property? Explain:

NOTICE TO BUYER: Your claims history, your credit report, the Property's claims history and other factors may affect the insurability of the Property and at what cost. Under Arizona law, your insurance company may cancel your homeowner's insurance within 60 days after the effective date. Contact your insurance company.

BUILDING AND SAFETY INFORMATION

YES	NO	ROOF / STRUCTURAL:

NOTICE TO BUYER: Contact a professional to verify the condition of the roof.

YES	NO	
☐	☒	Are you aware of any past or present roof leaks? Explain:
☐	☒	Are you aware of any other past or present roof problems? Explain:

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	YES	NO	
68.	☐	☒	Are you aware of any roof repairs? Explain:
69.			
70.	☐	☒	Is there a roof warranty? (Attach a copy of warranty if available.)
71.	☐	☐	If yes, is the roof warranty transferable? Cost to transfer
72.	☐	☒	Are you aware of any interior wall/ceiling/door/window/floor problems? Explain:
73.			
74.	☐	☒	Are you aware of any cracks or settling involving the foundation, exterior walls or slab? Explain:
75.			
76.	☐	☒	Are you aware of any chimney or fireplace problems, if applicable? Explain:
77.			
78.	☐	☒	Are you aware of any damage to any structure on the Property by any of the following? (Check all that apply):
79.			☐ Flood ☐ Fire ☐ Wind ☐ Expansive soil(s) ☐ Water ☐ Hail ☐ Other
80.			Explain:
81.			**WOOD INFESTATION:**
82.			Are you aware of any of the following:
83.	☐	☒	Past presence of termites or other wood destroying organisms on the Property?
84.	☐	☒	Current presence of termites or other wood destroying organisms on the Property?
85.	☐	☒	Past or present damage to the Property by termites or other wood destroying organisms?
86.			Explain:
87.			
88.	☐	☒	Are you aware of past or present treatment(s) of the Property for termites or other wood destroying organisms?
89.			If yes, date last treatment was performed:
90.			Name of treatment provider(s):
91.	☐	☒	Is there a treatment warranty? (Attach a copy of warranty if available.)
92.	☐	☒	If yes, is the treatment warranty transferable?
93.			**NOTICE TO BUYER: Contact Office of Pest Management for past termite reports or**
94.			**treatment history.**
95.			**HEATING & COOLING:**
96.			Heating: Type(s)
97.			Approximate Age(s)
98.			Cooling: Type(s)
99.			Approximate Age(s)
100.	☐	☒	Are you aware of any past or present problems with the heating or cooling system(s)?
101.			Explain:
102.			**PLUMBING:**
103.	☐	☐	Are you aware of the type of water pipes, such as galvanized, copper, PVC, CPVC or polybutylene?
104.			If yes, identify:
105.	☐	☒	Are you aware of any past or present plumbing problems? Explain:
106.			
107.	☐	☒	Are you aware of any water pressure problems? Explain:
108.			Type of water heater(s): ☐ Gas ☐ Electric ☐ Solar Approx. age(s):
109.	☐	☒	Are you aware of any past or present water heater problems? Explain:
110.			
111.	☒	☐	Is there a landscape watering system? If yes, type: ☐ automatic timer ☐ manual ☒ both
112.	☐	☒	If yes, are you aware of any past or present problems with the landscape watering system?
113.			Explain:
114.	☒	☐	Are there any water treatment systems? (Check all that apply):
115.			☐ water filtration ☒ reverse osmosis ☒ water softener ☐ Other
116.			Is water treatment system(s) ☐ owned ☐ leased (Attach a copy of lease if available.)
117.	☐	☒	Are you aware of any past or present problems with the water treatment system(s)?
118.			Explain:

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YES	NO	
		SWIMMING POOL/SPA/HOT TUB/SAUNA/WATER FEATURE:
☐	☒	Does the Property contain any of the following? (Check all that apply):
		☐ Swimming pool ☐ Spa ☐ Hot tub ☐ Sauna ☐ Water feature
☐	☐	If yes, are either of the following heated? ☐ Swimming pool ☐ Spa If yes, type of heat: _____
☐	☐	Are you aware of any past or present problems relating to the swimming pool, spa, hot tub, sauna or water feature?
		Explain: _____
		ELECTRICAL AND OTHER RELATED SYSTEMS:
☐	☒	Are you aware of any past or present problems with the electrical system? Explain: _____
☒	☐	Is there a security system? If yes, is it (Check all that apply):
		☐ Leased (Attach copy of lease if available.) ☒ Owned ☐ Monitored ☐ Other _____
☐	☒	Are you aware of any past or present problems with the security system? Explain: _____
☒	☐	Does the Property contain any of the following systems or detectors?(Check all that apply):
		☒ Smoke/fire detection ☐ Fire suppression (sprinklers) ☒ Carbon monoxide detector
		If yes, are you aware of any past or present problems with the above systems? Explain: _____
		MISCELLANEOUS:
☐	☒	Are you aware of any animals/pets that have resided in the Property? If yes, what kind: _____
☐	☒	Are you aware of or have you observed any of the following on the Property? (Check all that apply):
		☐ Scorpions ☐ Rabid animals ☐ Bee swarms ☐ Rodents ☐ Reptiles ☐ Bed Bugs ☐ Other: _____
		Explain: _____
☒	☐	Has the Property been serviced or treated for pests, reptiles, insects, birds or animals? If yes, how often: _____
		Name of service provider(s): Owner Sprays Date of last service: 7-1-20
☐	☒	Are you aware of any work done on the Property, such as building, plumbing, electrical or other improvements or alterations or room conversions? **(If no, skip to line 156.)**
		Explain: _____
☐	☐	Were permits for the work required? Explain: _____
☐	☐	If yes, were permits for the work obtained? Explain: _____
☐	☐	Was the work performed by a person licensed to perform the work? Explain: _____
☐	☐	Was approval for the work required by any association governing the property? Explain: _____
		If yes, was approval granted by the association? Explain: _____
☐	☐	Was the work completed? Explain: _____
☐	☒	Are there any security bars or other obstructions to door or window openings? Explain: _____
☐	☒	Are you aware of any past or present problems with any built-in appliances? Explain: _____
☐	☒	Are there any leased propane tanks, equipment or other systems on the Property? (Attach a copy of lease if available.)
		Explain: _____

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UTILITIES

162. **DOES THE PROPERTY CURRENTLY RECEIVE THE FOLLOWING SERVICES?**

	YES	NO		PROVIDER
163.	☒	☐	Electricity:	SRP
164.	☒	☐	Fuel: ☒ Natural gas ☐ Propane ☐ Oil	City of Mesa
165.	☒	☐	Cable / Satellite:	Cox
166.	☒	☐	Internet:	Cox
167.	☒	☐	Telephone:	Cox
168.	☒	☐	Garbage Collection:	City of Mesa
169.	☒	☐	Fire:	City of Mesa
170.	☐	☒	Irrigation:	
171.	☒	☐	Water Source:	
172.	☐	☐	☒ Public ☐ Private water co. ☐ Hauled water	City of Mesa

173. ☐ Private well ☐ Shared well If water source is a private or shared well, complete and attach
174. Domestic Water Well/Water Use Addendum.

175. **NOTICE TO BUYER: If the Property is served by a well, private water company or a municipal water provider,**
176. **the Arizona Department of Water Resources may not have made a water supply determination.**
177. **For more information about water supply, or any of the above services, contact the provider.**

178. ☐ ☒ Are you aware of any past or present drinking water problems? Explain: _____
179. _____

180. ☒ ☐ U.S. Postal Service delivery is available at: ☐ Property ☒ Cluster Mailbox ☐ Post Office ☐ Other _____

181. ☐ ☒ Are there any alternate power systems serving the Property? **(If no, skip to line 190.)**
182. If yes, indicate type (Check all that apply):
183. ☐ Solar ☐ Wind ☐ Generator ☐ Other _____
184. Are you aware of any past or present problems with the alternate power system(s)? Explain: _____
185. _____

186. ☐ ☐ Are any alternate power systems serving the Property leased? Explain: _____
187. _____
188. If yes, provide name and phone number of the leasing company (Attach copy of lease if available): _____
189. _____

190. **NOTICE TO BUYER: If the Property is served by a solar system, Buyer is advised to read all pertinent**
191. **documents and review the cost, insurability, operation, and value of the system, among other items.**

ENVIRONMENTAL INFORMATION

	YES	NO	
192.	☐	☒	Are you aware of any past or present issues or problems with any of the following on the Property? (Check all that apply):
193.			☐ Soil settlement/expansion ☐ Drainage/grade ☐ Erosion ☐ Fissures ☐ Dampness/moisture ☐ Other
194.			Explain: _____
195.	☐	☒	Are you aware of any past or present issues or problems in close proximity to the Property related to any of
196.			the following? (Check all that apply):
197.			☐ Soil settlement/expansion ☐ Drainage/grade ☐ Erosion ☐ Fissures ☐ Other _____
198.			Explain: _____

199. **NOTICE TO BUYER: The Arizona Department of Real Estate provides earth fissure maps to any member**
200. **of the public in printed or electronic format upon request and on its website at www.azre.gov.**

201. ☐ ☒ Are you aware if the Property is subject to any present or proposed effects of any of the following? (Check all that apply):
202. ☐ Airport noise ☐ Traffic noise ☐ Rail line noise ☐ Neighborhood noise ☐ Landfill ☐ Toxic waste disposal
203. ☐ Odors ☐ Nuisances ☐ Sand/gravel operations ☐ Other _____
204. Explain: _____

205. ☐ ☒ Are you aware if any portion of the Property has ever been used as a "Clandestine drug laboratory" (manufacture of,
206. or storage of, chemicals or equipment used in manufacturing methamphetamine, ecstasy or LSD)? >>

YES	NO	
☐	☒	Are you aware if the Property is located in the vicinity of a public or private airport?

Explain: _____

NOTICE TO SELLER AND BUYER: Pursuant to Arizona law a Seller shall provide a written disclosure to the Buyer if the Property is located in territory in the vicinity of a military airport or ancillary military facility as delineated on a map prepared by the State Land Department. The Department of Real Estate also is obligated to record a document at the County Recorder's Office disclosing if the Property is under restricted air space and to maintain the State Land Department Military Airport Map on its website at www.azre.gov.

☐	☒	Is the Property located in the vicinity of a military airport or ancillary military facility?

Explain: _____

☐	☒	Are you aware of the presence of any of the following on the Property, past or present? (Check all that apply):

☐ Asbestos ☐ Radon gas ☐ Lead-based paint ☐ Pesticides ☐ Underground storage tanks ☐ Fuel/chemical storage

Explain: _____

☐	☒	Are you aware if the Property is located within or subject to any of the following ordinances? (Check all that apply):

☐ Superfund / WQARF / CERCLA ☐ Wetlands area ☐ Natural Area Open Spaces

☐	☒	Are you aware of any open mine shafts/tunnels or abandoned wells on the Property?

If yes, describe location: _____

☐	☒	Are you aware if any portion of the Property is in a flood plain/way? Explain: _____

NOTICE TO BUYER: Your mortgage lender [may] [will] require you to purchase flood insurance in connection with your purchase of this property. The National Flood Insurance Program provides for the availability of flood insurance and establishes flood insurance policy premiums based on the risk of flooding in the area where properties are located. Recent changes to federal law (The Biggert-Waters Flood Insurance Reform Act of 2012 and the Homeowner Flood Insurance Affordability Act of 2014, in particular) will result in changes to flood insurance premiums that are likely to be higher, and in the future may be substantially higher, than premiums paid for flood insurance prior to or at the time of sale of the property. As a result, purchasers of property should not rely on the premiums paid for flood insurance on this property previously as an indication of the premiums that will apply after completion of the purchase. In considering purchase of this property you should consult with one or more carriers of flood insurance for a better understanding of flood insurance coverage, current and anticipated future flood insurance premiums, whether the prior owner's policy may be assumed by a subsequent purchaser of the property, and other matters related to the purchase of flood insurance for the property. You may also wish to contact the Federal Emergency Management Agency (FEMA) for more information about flood insurance as it relates to this property.

☐	☒	Are you aware of any portion of the Property ever having been flooded? Explain: _____
☐	☒	Are you aware of any water damage or water leaks of any kind on the Property? Explain: _____
☐	☒	Are you aware of any past or present mold growth on the Property? If yes, explain: _____

SEWER/WASTEWATER TREATMENT

YES	NO	
☒	☐	Is the entire Property connected to a sewer?
☐	☐	If no, is a portion of the Property connected to a sewer? Explain: _____
☒	☐	If the entire Property or a portion of the Property is connected to a sewer, has a professional verified the sewer connection?

If yes, how and when: WHEN HOUSE WAS BUILT IN 2016

NOTICE TO BUYER: Contact a professional to conduct a sewer verification test.

Type of sewer: ☒ Public ☐ Private ☐ Planned and approved sewer system, but not connected

Name of Provider: City of Mesa

>>

	YES	NO	
253.	☐	☒	Are you aware of any past or present problems with the sewer? Explain:
254.	☐	☒	Is the Property served by an On-Site Wastewater Treatment Facility? **(If no, skip to line 267.)**
255.			If yes, the Facility is: ☐ Conventional septic system ☐ Alternative system; type:
256.	☐	☐	If the Facility is an alternative system, is it currently being serviced under a maintenance contract?
257.			If yes, name of contractor: Phone #:
258.			Approximate year Facility installed: (Attach copy of permit if available.)
259.	☐	☐	Are you aware of any repairs or alterations made to this Facility since original installation?
260.			Explain:
261.			
262.			Approximate date of last Facility inspection and/or pumping of septic tank:
263.	☐	☐	Are you aware of any past or present problems with the Facility? Explain:
264.			

265. **NOTICE TO SELLER AND BUYER: The Arizona Department of Environmental Quality requires a Pre-Transfer**
266. **Inspection of On-Site Wastewater Treatment Facilities on re-sale properties.**

OTHER CONDITIONS AND FACTORS

267. What other material (important) information are you aware of concerning the Property that might affect the buyer's decision-making
268. process, the value of the Property, or its use? Explain:
269.

ADDITIONAL EXPLANATIONS

270.
271.
272.
273.
274.
275.
276.
277.
278.
279.

280. **SELLER CERTIFICATION:** Seller certifies that the information contained herein is true and complete to the best of Seller's
281. knowledge as of the date signed. Seller agrees that any changes in the information contained herein will be disclosed in writing by Seller
282. to Buyer prior to Close of Escrow, including any information that may be revealed by subsequent inspections. Seller acknowledges
283. receipt of Residential Seller Disclosure Advisory titled *When in Doubt — Disclose.*

284. 10/21/2020 10/21/2020
^ SELLER'S SIGNATURE MO/DA/YR ^ SELLER'S SIGNATURE MO/DA/YR
Francis S Flournoy Georgia Flournoy

285. **Reviewed and updated: Initials:** _____ / _____ _____
SELLER SELLER MO/DA/YR

286. **BUYER'S ACKNOWLEDGMENT:** Buyer acknowledges that the information contained herein is based only on the Seller's actual
287. knowledge and is not a warranty of any kind. Buyer acknowledges Buyer's obligation to investigate any material (important) facts in
288. regard to the Property. Buyer is encouraged to obtain Property inspections by professional independent third parties and to
289. consider obtaining a home warranty protection plan.

290. **NOTICE:** Buyer acknowledges that by law, Sellers, Lessors and Brokers are not obligated to disclose that the Property is or has been: (1) the site
291. of a natural death, suicide, homicide, or any other crime classified as a felony; (2) owned or occupied by a person exposed to HIV, diagnosed as
292. having AIDS or any other disease not known to be transmitted through common occupancy of real estate; or (3) located in the vicinity of a sex offender.

293. **By signing below, Buyer acknowledges receipt only of this SPDS. If Buyer disapproves of any items provided herein, Buyer**
294. **shall deliver to Seller written notice of the items disapproved as provided in the Contract.**

295. _____ _____
^ BUYER'S SIGNATURE MO/DA/YR ^ BUYER'S SIGNATURE MO/DA/YR

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